

25STCV37297 25STCV37297

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Case Number: 25STCV37297 Hearing Date: July 13, 2026 Dept: 529

CHRISTOPHER ORLANDO ESCOBAR V. HENKELS & MCCOY WEST, LLC, ET
AL.

DEFENDANT

HENKELS & MCCOY WEST, LLC'S MOTION TO COMPEL ARBITRATION AND STAY ACTION

Date of Hearing: July

13, 2026 Trial

Date: None set

Department: 529 Case

No.: 25STCV37297

Moving

Party: Defendants Henkels &

McCoy West LLC

Responding

Party: Plaintiff

Christopher Orlando Escobar

BACKGROUND

On December 19, 2025, Plaintiff Christopher Orlando Escobar filed a complaint against Defendants Henkels & McCoy West, LLC, Mastec North America, Inc., Mark Partida, and Lizeth Marcial for various violations of the Labor Code, wrongful termination, violation of Business and Professions Code, and violation of FEHA based on sex/gender based discrimination and failure to take

all reasonable steps to prevent and/or remedy discrimination and/or retaliation. On February 17, 2026, Plaintiff filed a First Amended Complaint adding a PAGA cause of action.

[TENTATIVE]

RULING

Defendant Henkels
& McCoy West LLC's Motion to Compel Arbitration and Stay Action is GRANTED.

REQUEST
FOR JUDICIAL NOTICE

Defendant Henkels & McCoy West, LLC requests this court take judicial notice of Plaintiff Ismael Cruz's Class Action Complaint, filed on November 7, 2024, and Joint Report Regarding Outcome of Mediation, filed on April 23, 2026, in Ismael Cruz v. Henkels & McCoy West, LLC; Henkels & McCoy, Inc.; and Does 1 through 100, inclusive, Case No. 24STCV29321 (Exhs. A and B) and Plaintiff Ismael Cruz's Representative Complaint for Violation of the Private Attorneys General Act, filed on November 5, 2024, in Ismael Cruz v. Henkels & McCoy West, LLC; Henkels & McCoy, Inc.; and Does 1 through 100, inclusive, Case No. 24STCV29074 (Exh. C).

The court GRANTS the request for judicial notice. (Evid. Code §§452.)

EVIDENTIARY
OBJECTIONS

In opposition, Plaintiff submits objections to the declaration of Rene Cedillo. The court OVERRULES the objections.

DISCUSSION

Defendant Henkels & McCoy West, LLC[1]
move this court for an order compelling arbitration of Plaintiff Orlando Escobar's first through thirteenth causes of action in his First Amended Complaint pursuant to the collective bargaining agreement ("CBA") governing his employment with Defendant: the 2022–2026 Master Labor Agreement between the Southern California District Council of Laborers and signatory contractors (the

“MLA”). Defendant also seeks to dismiss, stay or otherwise abate Plaintiff’s fourteenth cause of action for violation of PAGA, pursuant to Labor Code § 2699.6 and the overlapping Cruz v. Henkels & McCoy West, LLC et al., Los Angeles Superior Court Case No. 24STCV29074 representative settlement proceedings.

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties’ dispute. (CCP §1281.2; Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961.) Because the right to arbitration depends upon contract, the party seeking arbitration bears the initial burden of proving that the parties actually agreed to arbitrate the instant dispute. (Hotels Nevada v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 761.) If the moving party does so, the burden shifts to the opposing party to show that the subject agreement is unenforceable. (Id. at 761.) The court “sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Engalla v. Permanente Med. Grp., Inc. (1997) 15 Cal.4th 951, 972.)

Defendant argues Plaintiff is bound by the MLA and its arbitration provisions. The MLA is a CBA between the Associated General Contractors of California, Inc., the Building Industry Association of Southern California, the Southern California Contractors Association, Inc., and the Southern California District Council of Laborers. (MLA p. 1.) As part of the MLA, Appendix C broadly requires arbitration of claims arising under Wage Order 16, Labor Code § 2699.5 et seq., derivative Business and Professions Code § 17200 claims, and other wage-hour disputes. (MLA app. C.) The MLA also requires arbitration of discrimination, retaliation, harassment, and wrongful-termination claims arising under Title VII of the Civil Rights Act of 1964 (“Title VII”), Age Discrimination in Employment Act (“ADEA”), Americans with Disabilities Act (“ADA”), Family and Medical Leave Act (“FMLA”), California Fair Employment and Housing Act (“FEHA”), California Family Rights Act (“CFRA”), and related statutes. (MLA arts. I.B.1, I.P, art. XV.A, art. XVI.F–G, app. C.) Because Plaintiff’s claims fall squarely within the MLA’s arbitration provisions, Defendant maintains Plaintiff should be compelled to arbitration. Defendant also notes it is a basic principle of collective bargaining law that an employee within the bargaining unit is bound by the terms of a valid CBA even if he is not a formal signatory to the agreement. (Florio

v. City of Ontario (2005) 130 Cal. App. 4th 1462, 1466.) And where a CBA clearly requires arbitration of covered statutory claims, represented employees may be compelled to arbitrate those claims. (14 Penn Plaza LLC v. Pyett (2009) 556 U.S. 247, 257–58, 274; Vasquez v. Superior Court (2000) 80 Cal. App. 4th 430, 434.)

In opposition, Plaintiff argues the motion should be denied because Defendant did not properly authenticate the MLA as Defendant failed to show that it is the writing that Defendant claims to be. Even if the court finds Defendant did properly authenticate the MLA, Plaintiff argues the motion should still be denied because Plaintiff's claims are outside the scope of the MLA. Specifically, Section B of Appendix C provides that "[n]o Statutory Dispute subject to this Appendix C shall be recognized unless called to the attention of and, in the event it is not resolved, confirmed in writing by the individual employee to the individual Contractor . . . The employee and Contractor shall give written notice to the Union of the existence of a Statutory Dispute." Plaintiff maintains they filed the instant case against Defendant, Mastec North America, Inc., Mark Partida, Lizeth Marcial, and DOES 1-20, inclusive, not against the Defendant alone as "the individual Contractor," as expressly required by the MLA. Thus, it is equally undisputed that Plaintiff's claims in the instant case fall outside the scope of the MLA. Similarly, Plaintiff argues numerous cases have held arbitration provisions in a collective bargaining agreement cannot prevent an individual union member from pursuing his or her statutory and/or common-law claims in a court of law.

First, the court finds the MLA has been properly authenticated. As noted by Defendant, authentication may be shown by direct or circumstantial evidence, including the document's contents and the circumstances of its production. (People v. Goldsmith (2014) 59 Cal. 4th 258, 267–68.) Mr. Cedillo's declaration provides that Mr. Cedillo is a Director, Human Resources with Henkels & McCoy West, LLC and as part of his job duties, he has knowledge over the employment, payroll, dispatch, and job records relating to Plaintiff Christopher Escobar along with access to Defendant's personnel files, payroll records, union dispatch records, daily work reports, timesheets, and labor-agreement records. (Cedillo Decl. ¶¶1-3.) The declaration further states he is "familiar with the 2022–2026 Master Labor Agreement between the Southern California District Council of Laborers and signatory contractors (the "MLA"), including the portions of the MLA governing covered work, wages, hours, working conditions, and grievance/arbitration procedures." (Cedillo Decl. ¶3.) Plaintiff does not dispute that he is a member of the union mentioned in the MLA.

The court finds this sufficient to show that the parties are subject to the MLA. Thus, Defendants have carried the burden to show the existence of an arbitration agreement with Plaintiff. Moreover, the California Supreme Court has directly addressed the issue of whether employees within the bargaining unit are bound by the terms of a valid CBA even if they are not individual signatories. (See *San Lorenzo Education Assn. v. Wilson* (1982) 32 Cal.3d 841 holding that “[i]t is a fundamental principle of such a system that a member of a bargaining unit is bound by the terms of a valid collective bargaining agreement, though he is not formally a party to it and may not even belong to the union which negotiated it.”) Accordingly, it does not matter that Plaintiff had never seen the MLA, never heard of the MLA, and was unaware that such an agreement existed. (See *Wilson-Davis v. SSP America, Inc.* (2021) 62 Cal.App.5th 1080.)

Next, the court finds Appendix C of the MLA covers Plaintiff's claims. Appendix C expressly states that the agreement to arbitrate covered discrimination, harassment, retaliation, and related claims includes claims asserted against the Employer's employees, officers, or owners. It also expressly identifies the categories and statutes at issue: Wage Order 16, Labor Code wage-hour claims, derivative section 17200 claims, meal and rest periods, wage payment, FEHA, Title VII, ADEA, ADA, FMLA, CFRA, retaliation, wrongful termination in violation of public policy, and Labor Code section 1102.5. (Cedillo Decl., Exh. A, app. C.) The provision Plaintiff relies on, “[n]o Statutory Dispute subject to this Appendix C shall be recognized unless called to the attention of and, in the event it is not resolved, confirmed in writing by the individual employee to the individual Contractor . . . The employee and Contractor shall give written notice to the Union of the existence of a Statutory Dispute[]” does not narrow the claims subject to arbitration as Plaintiff suggests. The Appendix C as a whole allows the arbitrator to combine related disputes involving multiple contractors or entities for efficiency while maintaining the individual nature of each claim.

As for Code of Civil Procedure section 1281.2(c), the court stays the remaining proceedings while Henkels and Plaintiff go to arbitration.

PAGA

Defendant argues Appendix C expressly waives PAGA and requires covered statutory disputes to proceed through the MLA's arbitration procedure. (MLA, app. C.) It provides:

Pursuant to California Labor Code

Section 2699.6, the Parties hereby expressly and unambiguously waive the provisions of the California Private Attorneys General Act (PAGA), Labor Code Section 2698, et seq., and agree that none of the provisions of that statute apply to any of the employees covered by the collective bargaining agreement between the undersigned Parties (the 'Agreement').

The Parties further agree that

this Agreement prohibits any and all violations of the California Labor Code sections identified in Labor Code §§ 2699.5 and 2699(f) as well as any others that would be redressable by PAGA, and that such claims shall be resolved exclusively through the Arbitration procedures in this Appendix C and shall not be brought in a court of law or before any administrative agency such as the California Labor Commissioner.

In opposition, Plaintiff argues the MLA does not qualify for

Section 2699.6 because it fails to "[a]uthorize[] the arbitrator to award any and all remedies otherwise available under" the PAGA statute. Plaintiff also argues the MLA is procedurally and substantively unconscionable because employees had no way to opt out of the MLA or otherwise not to be covered by it if they work in the construction industry in Southern California; Plaintiff never received the American Arbitration Association Employment Arbitration Rules and Mediation Procedures; it waives all representative PAGA actions and is not a valid collective bargaining agreement under Labor Code Section 2699.6; it does not authorize the arbitrator to award any and all remedies that would otherwise be available in trial court; and it does not contain a severability clause.

The court disagrees on the points raised by Plaintiff. First, the

MLA language here tracks the requirements of California Labor Code Section 2699.6 which creates a narrow, industry-specific exemption from PAGA for employees in the construction industry. Moreover, the court finds the MLA is not unconscionable. As noted by Defendant, the mere failure to provide AAA rules is insufficient to establish procedural unconscionability. Appendix C itself discloses the governing arbitral forum, requires a neutral arbitrator, requires Henkels to pay AAA and arbitrator fees, preserves statutory fee-shifting, and authorizes statutory remedies and therefore, Plaintiff's substantive challenges relate to terms clearly stated in the agreement itself. (See *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462; *Baltazar v. Forever 21, Inc.*

(2016) 62 Cal.4th 1237.) Similarly, none of Plaintiff's contentions establish substantive unconscionability.

Based on the foregoing, the motion to compel arbitration and stay the pending proceeding is GRANTED.

[1] Defendants

note Defendant Mastec North America, Inc. ("Mastec") contends it never employed Plaintiff and was erroneously named in this action.